



TOWN AND COUNTRY PLANNING ACT 1990

APPEAL BY: Mr and Mrs Johns

PROPOSAL: Outline Planning Application with
all matters reserved for the
Proposed Erection of a Self-Build
Dwelling

LOCATION: Land at Reeves Close, Porthleven,
TR13 9PB.

LPA DECISION: Refusal one reason

MHCLG REF: 6003242

LPA REF: PA25/06277

STATEMENT OF CORNWALL COUNCIL

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ABBREVIATIONS

NPPF *National Planning Policy Framework*

PPG *Planning Practice Guidance*

CLP *Cornwall Local Plan Strategic Policies 2010 – 2030*

1 Background to the appeal

- 1.1 This is an appeal against the refusal of planning permission for the development described in the heading and application form. The application was refused under the Council's delegated powers for one reason:

'The proposed development would result in the permanent loss of an area of designated public open space that has been provided and maintained for informal recreation and community use since the original development of Reeves Close. The site meets the definition of open space in the National Planning Policy Framework (NPPF) and continues to provide accessible green infrastructure of public value. The LPA does not consider it has been adequately demonstrated that the open space is surplus to requirements, or the loss would be replaced by equivalent or better provision in terms of quantity and quality in a suitable location. Accordingly, the proposal fails to satisfy the relevant tests set out in paragraph 104 of the National Planning Policy Framework (NPPF). The development would also conflict with policies 13, 16 and 25 of the Cornwall Local Plan Strategic Policies 2010-2030 and policies C1 and G1 of the Climate Emergency Development Plan Document 2023, which seek to protect and enhance open space and green infrastructure for the health, wellbeing and resilience of communities. The harm arising from the loss of this open space would significantly and demonstrably outweigh the limited benefits of delivering a single dwelling in this location, even when applying the presumption in favour of sustainable development under paragraph 11 of the National Planning Policy Framework (NPPF).'

- 1.2 The Planning Inspectorate has a copy of the decision notice dated 27 October 2025; they also have a copy of the Officer's report and the Committee Minutes. They should be read in conjunction with this statement

2 Site and surroundings

- 2.1 Porthleven is a small town located around a harbour on the east side of Mount's

Bay some 3.5km to the south-west of the town of Helston. The appeal site is a small area of land towards the south end of a small cul-de-sac known as Reeves Close.

- 2.2 The site is enclosed by hedging and is has two points of access to Reeves Close only. The land is laid to grass and is in a tidy mown condition. Reeves Close is a development of single storied dwellings within their own individual plots. Most of the properties have views across the valley in which Porthleven is located to open fields. The open space, which is largely maintained by residents provides a visual link to the more distant countryside.
- 2.3 To the west of the appeal site across Vicarage Road is Porthleven Cemetery. There are dwellings to the remaining three sides.
- 2.4 The site is within the Zone of Influence (ZoI) of the Fal and Helford Special Area of Conservation.

3 Relevant planning history

- 3.1 The planning history is set out in the officer report. Essentially, planning permission W2/PA92/00570/S01 included the appeal site as an area of open space. This was secured through a S106 obligation (see **Appendix 1**¹). Kerrier District Council (the Council at time) did not take over ownership or maintenance of the land. It is understood that the open space has since been maintained by residents of Reeves Close.

4 Material local planning documents and other relevant documents

Cornwall Local Plan Strategic Policies 2010-2030

- 4.1 Changes to the NPPF made in December 2024 altered the Standard Housing methodology which was used to determine a 5 year supply of housing to meet

local needs (a requirement of the NPPF). This resulted in a figure of 4,421 dwelling per year for Cornwall against the previous figure of about 2,600 dwellings per year. This results in Cornwall not being able to demonstrate a 5 year supply of housing land.

- 4.2 Together with the CLP being over five years old, this triggers the presumption in favour of sustainable development (NPPF paragraph 11). This means that planning permission should be granted unless the adverse impacts of the development 'significantly and demonstrably' outweigh the benefits.
- 4.3 With regard to policies relating to housing supply only CLP policy 2(a) is considered out of date. Those parts of Policy 3 relating to detailed locational policy are considered out of date but much of Policy 3(3) and 3(4) and supporting text of reflect the NPPF (Paras. 98 and 110) for judging suitable locations for development.
- 4.4 The Council has produced an Interim Policy Position Statement which has been through a consultation process. It is not intended to be a Supplementary Planning Document and contains no new policies. It is intended as guidance for applicants, local communities and the Council as decision maker to be read alongside the NPPF and the Development Plan.
- 4.5 Section 3.5 of the document sets out the applicability of development plan policies for a range of scenarios. It is recognised that *'The development of housing across a range of our settlements reflects that sustainable settlements are not defined purely by their size or place in a hierarchy, but by how they function and the presence of a range of services, facilities and connections to other places.'*
- 4.6 While the objective of the advice is to steer development toward settlements with a range of facilities and services, it is recognised that some small scale development may be appropriate in smaller settlements with a reasonable level of services and facilities. In those cases rounding off and infill may be appropriate.
- 4.7 Policy 1 echoes the NPPF in seeking to promote sustainable development which

fulfils the economic, social and environmental dimensions when applied equally and simultaneously.

- 4.8 Policy 2 sets out the spatial strategy, which is to maintain the dispersed development pattern of Cornwall with strategic growth accommodated in the main towns and city. Otherwise, proposals should, amongst other things, protect and enhance quality of place by ensuring high quality design appropriate to location, considering the impacts of a proposal on the locality, identifying the value, character and importance of landscapes, and protecting and enhancing the natural and historic landscape.
- 4.9 Policy 3 sets out the role and function of places. Development is to follow the dispersed settlement pattern of Cornwall with a concentration on the 18 main towns. Outside of the main towns identified, housing is to be delivered under identification of sites through Neighbourhood Plans; rounding off and the use of previously developed land within or immediately adjoining a settlement; infill schemes that fill a small gap in an otherwise continuously built up frontage and do not physically extend the settlement into the open countryside; and rural exceptions sites for affordable housing.
- 4.10 Policy 13 sets out development standards. These include provision of appropriate internal space for housing; proportionate public open space provision; appropriate levels of off street parking; sufficient storage space and the avoidance of adverse environmental impacts from a development. As the supporting text at 2.80 indicates these *'...will protect and enhance the quality and value of the built environment...'*
- 4.11 Policy 16 on health and well-being seeks to maximise the opportunity for physical activity through the provision of open space.
- 4.12 Policy 22 sets out that development within zones of influence of European Protected Sites will be required to provide for mitigation on impacts on European Protected sites in the form of appropriate management or mitigation on site or by off-site contributions.
- 4.13 Policy 25 relates to green infrastructure which is important to promote a sense

of place and community identity and improve the health and sense of well-being of people. It seeks the protection and enhancement of green infrastructure as well as taking opportunities to restore or enhance linkages between green spaces.

Porthleven Neighbourhood Plan 2021

- 4.14 This plan was 'made' on 18 November 2021. The plan forms part of the Development Plan. Policy HO1 relates to housing and supports infill housing within the development boundary of Porthleven.
- 4.15 In the section on open space, the plan recognises that open spaces are a valued community asset. Policy NE3 seeks to protect open spaces and provide Local Green Spaces.

European Sites Mitigation Supplementary Planning Document July 2021 (SPD)

- 4.16 This document was published and adopted by the Council in July 2021. It provides additional guidance on the implementation of Policy 22 of the CLP (see above). The Habitat Regulations Assessment carried out for the CLP found that there could be harm to the special characteristic of the European sites within the Plan area by an increase in the population giving rise to increased recreation pressures on those sites.
- 4.17 The document does not include new planning policy but sets out the strategic approach to mitigation and monitoring of the sites. It also sets out the scale of contributions required to assist to deliver mitigation measures.
- 4.18 Essentially, mitigation is required where there is a net increase in dwellings on site. In this instance as the appellant has entered into a S111 obligation with the Council to provide funding for mitigation measures. This complies with CLP Policy 22.

Climate Emergency DPD (CEDPD)

- 4.19 This document sits alongside the CLP. It follows the Council declaring a climate

emergency in 2019. This plan impacts how places grow and change, whilst sitting alongside Government legislation. The policies will help to protect and shape the future of Cornwall by adding detail to the CLP. The document was adopted by the Council in February 2023, following consultation and examination and forms part of the development plan.

- 4.20 Policy C1 sets out the climate change principles for new development. These include contributing to the health and well-being; conserving and enhancing natural environments.
- 4.21 Policy G1 relates to green infrastructure which under paragraph 2 of policy G1 requires green infrastructure to be accessible for all with high levels of accessibility in public areas, and promote health, wellbeing, community and cohesion and active living. With Paragraph 3 of policy G1 requires proposals to contribute to the health, wellbeing and resilience of our communities.

National Planning Policy Framework 2024

- 4.22 The Framework sets out three objectives to achieve sustainable development; economics, social and environment to be pursued in mutually supportive ways (paragraph 8). The 'golden thread' of a presumption in favour of sustainable development is emphasised in paragraph 11. This is tempered at paragraph 12 as the presumption does not change the statutory status of the development plan as the starting point for decision making. Going on to state that where a proposal conflicts with an up-to-date development plan (including a neighbourhood plan which is part of the development plan) permission should not usually be granted (unless material considerations indicate that the plan should not be followed).
- 4.23 Paragraph 103 emphasises that access to high quality open spaces and opportunities for sport and physical activity is important for the health and well-being of communities and can deliver wider benefits.
- 4.24 Paragraph 104 advises that existing open spaces (including playing fields) should not be built on unless an assessment is undertaken showing that the open space is surplus to requirements; its loss would be replaced by an

equivalent or better provision; or the development is for alternative sports and recreation purposes.

- 4.25 Paragraph 135 requires development to function well and add to the overall quality of the area and be sympathetic to local character and history, including surrounding built environment and landscape setting; establishing or maintaining a strong sense of place.
- 4.26 Conservation and enhancement of the natural environment remains at the heart of the NPPF. Paragraph 187 refers to development contributing to and enhancing the natural and local environment by protecting and enhancing valued landscapes and recognising the intrinsic character and beauty of the countryside.

Housing Crisis

- 4.27 In light of the significant national increase in housing targets set out within the NPPF, the Council is currently unable to demonstrate a five year housing land supply. It is appropriate to consider what can be done to increase housing supply as a material consideration in line with paragraph 11 and chapter 5 of the NPPF and to enable the Council to remain flexible and react to changing circumstances.
- 4.28 Securing Homes for All: A Plan to respond to Cornwall's Housing Crisis was considered by Cabinet on 15 December 2021. Cabinet resolved that the plan be agreed and implemented in order to advance the outcome of 'A Secure Home for All'. The plan recognises that Cornwall is experiencing a housing crisis and sets out a number of objectives and interventions to respond to it. Four main objectives are proposed in respect of homelessness prevention, increased availability of homes for local residents, a step-change in affordable housing provision and assuring delivery of the new homes needed under the Local Plan. For each of these objectives a number of interventions are proposed to be taken forward together with partners, local councils and communities to both respond to the immediate challenges residents face and to set in train more fundamental changes to address the roots of the housing crisis. A copy is attached at **Appendix 2.**²

- 4.29 The Housing Crisis Plan is a material planning consideration in applications relating to the delivery of housing. However, the plan contains no new policies deferring to the Development Plan.

5 Submissions

- 5.1 The primary considerations are whether the proposal is appropriate for its location. As ever, planning decisions are required to be determined in accordance with the development plan unless material considerations indicate otherwise.
- 5.2 The Inspector in accordance with section 79(1) of the Town and Country Planning Act 1990 '*...may deal with the application as if it had been made to him in the first instance*'. Accordingly, the Council has set out above the full range of policies against which the proposal was assessed.
- 5.3 At the outset it is emphasised that the Council's sole concern is with regard to the loss of the open space. The site would normally constitute an infill site within the meaning of a gap in an otherwise built up frontage in a settlement with access to day-to day facilities and services.
- 5.4 This open space was included as part of the overall layout of the housing estate in which it is located. In granting planning permission, the then Local Planning Authority, Kerrier District Council, sought to secure the provision and future maintenance through a condition attached to the permission and S106 obligation.
- 5.5 Since the estate has been completed the open space has been enjoyed by residents. The site has been maintained to a good standard by residents. It is located in the centre of the development and is accessible to all. It is clearly valued by residents of the estate who have expressed their support for its retention.
- 5.6 The dwellings in the cul de sac have reasonably spacious grounds. Although not overly built up in the sense of, say, an estate comprising semidetached or

terraces of dwellings, the area does feel built up. This open area within the built area provides a visual link to the surroundings and contributes much to the character of the immediate locality.

- 5.7 It is clear to the Council that development of this site with a dwelling will result on the loss of the open space which makes an important positive visual contribution and is valued by the residents who maintain and derive enjoyment from it.
- 5.8 The next nearest area of open space is some 300m (straight line) away at Methleigh Bottoms. Another area of open space including play equipment is 300m away (straight line). Both these exceed the accessible green space standards set by Natural England.
- 5.9 Open space for the purposes of the NPPF is defined in Annex 2 as *'All open space of public value, including not just land, but also areas of water (such as rivers, canals, lakes and reservoirs) which offer important opportunities for sport and recreation and can act as a visual amenity'* (my underlining). The PPG also sets out the importance of open space to the quality of development noting open space includes all open space of public value.
- 5.10 The NPPF advise at paragraph 104 that open spaces should not be built on unless three criteria are met. In respect of the three criteria, firstly an assessment has not been undertaken by the appellant which demonstrates the land is surplus to requirements. The Council's Principal Public Space Officer (Open Space) has commented that, although Porthleven had a surplus of Type1 open space (such as at Reeves Close), the proportion would be likely to decrease given that Methleigh Bottoms is increasingly becoming a natural space.
- 5.11 As the open space would be lost, NPPF Paragraph 104 requires replacement by *'...equivalent or better provision in terms of quality and quantity in a suitable location.'* No alternative provision is being proposed. However, a UU has been submitted offering an off-site contribution for the provision and improvement of open space elsewhere in Porthleven. It is acknowledged that standards provide a generic sum per square metre for offsite contributions. However, and as the Open Space Officer points out *'Actual project proposals & their costs would be*

a more satisfactory & appealing demonstration of compensation...'. No such costed project proposal has been put forward.

- 5.12 This open space was part of the original design and layout concept for the estate. It provides a readily accessible area for recreation and provides a visual link between built form of the village and the surrounding countryside. The objectives of the CLP and the NPPF seek to ensure that open spaces are well integrated in developments and add quality. The loss of an open space which makes a positive contribution to the environment would be contrary to these policies and objectives.
- 5.13 The appellant's submission make reference to a case at Constantine (PINS ref: 3249081). While there are some elements which are similar such as the site not being adopted by the former Council (Kerrier), the Constantine site was not maintained to the standard of this appeal site and was intended to be equipped with play equipment. The Council considers these differences to be significant. In any event, each application is considered upon its own merits, having regard to the Development Plan. It is rare for the circumstances of one application to match those of another, as is the case here.
- 5.14 It is acknowledged that the Council has a less than 5 years supply of housing land which engages the tilted balance under paragraph 11(d) of the NPPF. The development would add to the stock of housing but having regard to the numbers involved this would only be very modest. There would be economic benefits at least during the construction phase and by the occupiers. Again, this would only be modest. However, the Council consider that the adverse effects of the development as set out above demonstrably and significantly outweigh the benefits.

6 Conclusions

- 6.1 The proposal seeks to develop this existing open space for one dwelling. The estate within which the site is contained is relatively modern and the design layout included this centrally located, and accessible area as an open space.

Since the estate was completed, the open space has been maintained offsetting the built-up nature of its surroundings, providing a visual link to the wider surroundings and is clearly valued by the local community.

- 6.2 Policies of the CLP and the NPPF emphasise the importance of open spaces in sustainable development. They seek to ensure that open spaces are provided and retained to promote health and wellbeing and a high standard of amenity for existing and future users. The loss of this open space in the absence of a proposed acceptable alternative would run contrary to those policies.

7 Conditions

- 7.1 Should the Inspector decide that planning permission be granted for the proposal, the following conditions are suggested:

- 1 Details of the access, appearance, landscaping, layout and scale, (hereinafter called the reserved matters) shall be submitted to and approved in writing by the local planning authority before any development begins and the development shall be carried out as approved.

Reason: In accordance with the requirements of Section 92 of the Town and Country Planning Act 1990 (as amended) and in accordance with the requirements of Articles 1, 2 and 4 of the Town and Country Planning (Development Management Procedure) (England) Order 2015.

- 2 An application for approval of reserved matters must be made no later than the expiration of 3 years from the date of this decision and the development hereby approved shall commence no later than 2 years from the final approval of the reserved matters or, in the case of approval on different dates, the final approval of the last such matter to be approved.

Reason: In accordance with the requirements of Section 92 of the Town and Country Planning Act 1990 (as amended) and in accordance with the requirements of Articles 1, 2 and 4 of the Town and Country Planning (Development Management Procedure) (England) Order 2015.

- 3 The dwelling hereby approved shall not be commenced until details of the arrangements for an alternative off-site open space provision within Porthleven has been submitted to and approved in writing by the Local Planning Authority.

Reason: To conform with the terms of the application and to ensure that provision is made to offset the loss of existing space by making improvements to existing open space nearby; in accordance with paragraph 104 of the National Planning Policy Framework (NPPF) 2024.

Cornwall Council

¹ A copy of the S106 for application ref W2/PA92/00570/S01 is attached at Appendix 1.

² A copy of Securing Homes for All: A Plan to respond to Cornwall's Housing Crisis is attached at Appendix 2.